

BETA SERVICE AGREEMENT

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Business Topology Diagnostic – Beta Program

This Agreement is made on [Date] by and between:

Khiva Cheleigh, independent business topology analyst (“Analyst”), and
[Client Name], a [State] entity (“Client”).

1. Beta Program Eligibility & Revenue Verification

Client represents that its annual gross revenue for the most recently completed fiscal year is less than or equal to \$500,000. The Analyst reserves the right to require written documentation (tax return, CPA letter, or P&L with supporting bank statement) to verify revenue before work commences.

If revenue falls outside this band or verification documents are not provided within 48 hours of request, the Analyst may void this Agreement. In that event, the full payment will be refunded minus any non-recoverable third-party payment processing fees. Evidence of such fees will be supplied upon request.

2. Beta Terms & Reduced Fee

In consideration of the reduced fee, Client agrees to:

- Provide a written or video testimonial within 14 days of receiving the final deliverable, which the Analyst may use publicly.
- Grant the Analyst a perpetual, royalty-free license to incorporate anonymized, non-identifiable structural insights from this engagement into case studies, methodology documentation, and marketing materials. Client’s name will not be disclosed without separate written consent, except in the testimonial.

Fee: **\$500 USD** (standard price \$1,500). The full amount is due before analysis begins. Payment is non-refundable except as stated in Section 1.

3. Services

The Analyst will deliver the Business Topology Diagnostic:

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- Full structural map (as-is + remediation topology)
- Friction analysis with quantified cost estimates
- 90-day implementation roadmap
- 45-minute debrief presentation
- Delivery within 5 business days after payment clears, verification is complete, and this Agreement is signed.

4. Payment

Payment shall be made via a method specified by the Analyst (PayPal, Venmo, Cash App). The Analyst will issue an invoice. Work starts only upon cleared funds and completion of revenue verification.

5. Confidentiality

The Parties have or will enter a separate Mutual Non-Disclosure Agreement, which is incorporated by reference. If no NDA is signed, the confidentiality obligations in this Agreement apply: each Party will treat all non-public information as confidential for 3 years.

6. Intellectual Property

- All pre-existing methodologies, frameworks, and models remain the Analyst's sole property.
- Upon full payment, the Client receives a perpetual, non-exclusive, non-transferable license to use the deliverable internally.
- The Analyst retains the right to use anonymized data as described in Section 2.

7. Limitation of Liability

The Analyst's total liability is limited to the fee paid. Neither party is liable for indirect or consequential damages. The Client retains full responsibility for business decisions based on the analysis.

8. Termination

Either party may terminate on 5 days' written notice. If Client terminates before delivery, no

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refund is issued. If the Analyst terminates for any reason other than Client breach, a full refund will be made.

9. Independent Contractor

The Analyst is an independent contractor, not an employee or partner.

10. Governing Law

This Agreement is governed by the laws of the State of Texas, without regard to conflict-of-law principles. Disputes shall be submitted first to mediation in Castro County, Texas, and if unresolved, to the courts of that county.

11. Entire Agreement

This Agreement, together with any signed NDA, constitutes the full understanding. Amendments must be in writing and signed by both Parties.

SIGNATURES

Khiva Cheleigh

Signature: _____

Date: _____

[Client Name]

Signature: _____

Date: _____